

# Student General Misconduct Regulations 2012

## Part 1. Preliminary

### 1. Objectives

The objectives of these Regulations are to:

(a) regulate conduct of students who are:

a. on University premises, using University facilities and services or participating in University activities, or

b. otherwise engaging in conduct which may adversely impact members of the University community, regardless of where that conduct occurs; and

(b) facilitate the proper functioning of the University.

### 2. Authorising provision

These Regulations are made under the *Academic and Student Affairs Statute 2012* and sections 28, 29 and 30 of the Swinburne University of Technology Act 2010.

### 3. Definitions

In these Regulations—

*authorised officer* means a person appointed under regulation 6;

*gender-based violence* has the meaning given to it in the *Prevention of and Response to Gender-based Violence Policy*;

*general misconduct* has the meaning given to it in regulation 4;

*security officer* includes a person employed or engaged by a contractor of the University to provide security services;

*authorised persons* are those with a valid Student ID or Staff ID card and a valid reason for being on University premises.

*University community* means any current University student, graduate, staff member, member of Council (or other governance body of the University), contractor, volunteer, official visitor, holder of an honorary appointment, adjunct academic and support position holder, or supplier of academic placements or academic related services, or a representative group thereof.

## Part 2. General Misconduct

### 4. General misconduct

It is general misconduct if a student—

- a. while on University premises, using University facilities and services or engaging in University activities—
  - i. commits an offence;
  - ii. engages in conduct which causes the University to be guilty of a crime; or
  - iii. intentionally or recklessly causes injury to another person;
- b. intentionally or recklessly causes damage to, or commits theft of—
  - i. University property; or
  - ii. property on University premises;
- c. interferes with or improperly or unsafely uses University property, facilities or services, or facilitates unauthorised access to University property or assets in contravention with University procedures and policies;
- d. engages in improper behaviour which may adversely impact members of the University community (regardless of where the conduct occurs), including—
  - i. harassment;
  - ii. threatening or intimidating behaviour;
  - iii. use of abusive or offensive language;
  - iv. disorderly behaviour;
  - v. breach of the peace;
  - vi. access, display, download, upload or broadcast of offensive material;
  - vii. acting in breach of laws or rules of conduct relating to smoking, alcohol consumption, use of drugs, gambling, occupational health and safety or discrimination; or
  - viii. gender-based violence:
  - ix. any conduct which contravenes any applicable University statute, regulation, code of conduct or policy;
- e. interferes with University teaching or learning activities;
- f. engages in conduct which is detrimental to the reputation of the University;

- g. engages in a pattern or sequence of conduct which places substantial demand on University resources, vexatiously or without proper justification;
- h. forges University documents or documents submitted to the University;
- i. offers a bribe or other improper inducement in relation to the provision of University services or the discharge of the functions or duties of University staff;
- j. engages in misrepresentation in relation to the provision of University services or the discharge of the functions or duties of University staff;
- k. falsely claims an identity, qualification, prior learning or experience;
- l. falsely uses a title;
- m. acts in breach of a provision of a University statute or regulation relating to conduct;
- n. while on University premises or using University facilities and services, engages in a breach of copyright; or
- o. incites another person to commit general misconduct; or
- p. engages in any conduct which may create a risk to the health, safety or wellbeing of other members of the University community.

## Part 3. Sanctions

### Division 1. Removal from premises and confiscation

#### 5. Removal from premises and confiscation

1. A University staff member or security officer may confiscate anything in the apparent possession of a student if—

- a. the student apparently has committed, is committing or intends to commit general misconduct; and
- b. the thing being confiscated appears to indicate that general misconduct has occurred, is occurring or may occur.

2. A student may be refused access to University premises, or be expelled from University premises, if the student appears to be committing general misconduct.

#### 6. Authorised officers and sanctions

1. The Vice-Chancellor must appoint authorised officers for the purposes of these Regulations.

2. If an authorised officer becomes aware of, or has brought to his or her attention, an act of general misconduct and if the authorised officer is reasonably satisfied based on the evidence (including any evidence that the authorised officer may have gathered through investigation) that a student has engaged in general misconduct, the authorised officer may do any one or more of the following—

- a. reprimand and caution the student;
- b. require an apology;
- c. agree with the student on a course of corrective action;
- d. agree with the student on a course of counselling;
- e. suspend the student for up to two weeks;
- f. prohibit or deny the student access to or use of University premises, University facilities and services or University activities for up to two weeks;
- g. require the student to refrain from contact with specified persons;
- h. impose conditions on the student's attendance at University premises, participation in University activities or use of University facilities and services;
- i. require the student to pay the reasonable costs of any damage, repairs or replacement caused or required by the general misconduct;
- j. require the student to make restitution or to restore property affected by the general misconduct.

3. In addition to the consequences listed in subregulation (2), an authorised officer may—

- a. suspend the student for longer than two weeks;
- b. prohibit or deny access to or use of University premises, University facilities and services or University activities for longer than two weeks;
- c. exclude the student; or
- d. prevent the student from re-enrolling, receiving results, graduating or receiving an award.

4. The power conferred by subregulation (3) may be exercised only if the student has first been advised of the proposed decision and given reasonable opportunity to make a submission to the authorised officer.

5. A student who fails to comply with a sanction given under this regulation is guilty of general misconduct.

#### 7. Notice to student

The student must be informed in writing of the decision by the authorised officer within five working days of the decision being made.

### Division 2. Summary and emergency sanctions

#### 8. Summary exclusion

1. If a student behaves in a disruptive, disorderly, offensive, unsafe or threatening manner while on University premises, using University facilities and services or engaging in University activities, any University staff member or security officer may exclude the student from the University premises, using University facilities and services or engaging in University activities immediately and for a reasonable period.

2. A student must comply with an exclusion given under this regulation.

3. A student who fails to comply with an exclusion given under this regulation is guilty of general misconduct.

#### **Example 1**

A student causes disruption to a class and the teacher decides to exclude the student from the class. The teacher may do so by directing the student to leave the class and not return until the next class. No written notice of exclusion is required.

#### **Example 2**

A student behaves in a disorderly manner in an examination and the invigilator decides to exclude the student from the examination. The invigilator may do so by directing the student to leave the examination and not return. No written notice of exclusion is required. (The student may also be guilty of student academic misconduct.)

#### **Example 3**

A student is behaving in a threatening manner on campus. A security officer may exclude the student from the University premises by ordering the student to leave University premises. No written notice of exclusion is required.

#### 9. Emergency intervention and serious incidents

1. If the Vice-Chancellor or a deputy vice-chancellor is satisfied that a student has engaged in general misconduct of the kind referred to in regulation 4(a), (b), (d) or (f), or that a student's conduct or presence otherwise poses a risk of injury or damage to any person or property or to the interests or good reputation of the University, the Vice-Chancellor or deputy vice-chancellor may—

- a. exclude the student from the University premises indefinitely or for a period determined by the Vice-Chancellor or the deputy vice-chancellor; and
- b. suspend or terminate the student's enrolment.

2. The Vice-Chancellor or the deputy vice-chancellor must give written notice to the student of his or her decision under subregulation (1) as soon as reasonably practicable setting out the reasons for the decision.

3. If the Vice-Chancellor or the deputy vice-chancellor is reasonably satisfied that it is appropriate or necessary in the circumstances, an exclusion given under subregulation (1)(a) may be expressed to take effect immediately and, if so expressed, shall take effect immediately, even if the written notice required by subregulation (2) cannot be given to the student concerned immediately.

#### 10. Effect of sanctions

Nothing in regulations 5,6,7,8 or 9 affects any other right or remedy which the University may have against the student —

- 1. Under other University legislation;
- 2. Under other legislation; or
- 3. At common law.